to persist in this programme of disenfranchising vast swathes of its population and turning them into an un-people. This is why Professor Chaman Lal has remarked that ‘there is good reason to hold on to [Bhagat] Singh’s principles, owing to the current political atmosphere in the country’.[12]

The student protests which have followed have been met with unprecedented state brutality through the invocation of Section 144 of the Indian Code of Criminal Procedure. This, like the power used to deal with Bhagat Singh and his comrades, is an ‘emergency power’ designed to prevent public disorder and to protect human life. The existence of the power itself is a throwback to colonial times as it prevents any more than three persons from congregating in a public place. Thereafter, wide-ranging powers are bestowed upon the district magistrate to use his/her discretion to order any person to ‘abstain from a certain act’ or to ‘take certain order with respect to certain property in his possession or under his management’. The slapdash use of Section 144 across the country to deal with peaceful student protests, without the slightest regard being given to the fact that they posed no threat to public disorder whatsoever, led to a needlessly merciless repressive action by the police authorities. ‘Such repression by the police was not witnessed on the Aligarh Muslim University campus even during the time of the British,’[13] said the eminent eighty-eight-year-old Indian historian, Irfan Habib. He recalled how when he was a professor at Aligarh Muslim University, which saw the worst of the government repression against students, protesting against the Citizenship (Amendment) Act (CAA), that even ‘. . . the time when students had closed down the university for three days after Pakistan’s Prime Minister Liaquat Ali Khan was assassinated in 1951’ and even when ‘ India had nothing to do with it, still there had been no action against the students’. He could not forget ‘the gracious attitude of the first Prime Minister Jawaharlal Nehru towards students’, when ‘in the 1950s some right-wing MPs in Parliament had asked Nehru to conduct a survey to find out how many AMU engineering students migrated to Pakistan after completing their course’. The curt reply that